

SOTOMAYOR, J., dissenting

The public interest in the federal criminal prosecution of a former President alleged to have used the powers of his office to commit crimes may be greater still. “[T]he President . . . represent[s] all the voters in the Nation,” and his powers are given by the people under our Constitution. *Anderson v. Celebrezze*, 460 U.S. 780, 795 (1983). When Presidents use the powers of their office for personal gain or as part of a criminal scheme, every person in the country has an interest in that criminal prosecution. The majority overlooks that paramount interest entirely.

Finally, the question of federal criminal immunity for a former President “involves a countervailing Article II consideration absent in *Fitzgerald*”: recognizing such an immunity “would frustrate the Executive Branch’s enforcement of the criminal law.” Brief for United States 19. The President is, of course, entrusted with “‘supervisory and policy responsibilities of utmost discretion and sensitivity.’” *Ante*, at 610–611 (quoting *Fitzgerald*, 457 U.S., at 750). One of the most important is “enforcement of federal law,” as “it is the President who is charged constitutionally to ‘take Care that the Laws be faithfully executed.’” *Id.*, at 750 (quoting Art. II, §3). The majority seems to think that allowing former Presidents to escape accountability for breaking the law while disabling the current Executive from prosecuting such violations somehow respects the independence of the Executive. It does not. Rather, it diminishes that independence, exalting occupants of the office over the office itself. There is a twisted irony in saying, as the majority does, that the person charged with “tak[ing] Care that the Laws be faithfully executed” can break them with impunity.

In the case before us, the public interest and countervailing Article II interest are particularly stark. The public interest in this criminal prosecution implicates both “[t]he Executive Branch’s interest in upholding Presidential elections and vesting power in a new President under the Constitution” as well as “the voters’ interest in democratically select-